

CITATIONS:

Bluebook 22nd ed. 1946 311 .

ALWD 7th ed.

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Chicago 18th ed.

Kentucky - General Assembly, Regular Session : 311-320. HeinOnline.

AGLC 4th ed.

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OSCOLA 4th ed.

" 1946 311

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SECTION 36—PAST APPLICATION OF ACT

This Act shall not apply with respect to any accident, or judgment arising therefrom, or violation of the motor vehicle laws of this State, occurring prior to the effective date of this Act.

SECTION 37—ACT NOT TO PREVENT OTHER PROCESS

Nothing in this Act shall be construed as preventing the plaintiff in any action at law from relying for relief upon the other processes provided by law.

SECTION 38—CONSTITUTIONALITY

If any part or parts of this Act shall be held unconstitutional, such unconstitutionality shall not affect the validity of the remaining parts of this Act. The legislature hereby declares that it would have passed the remaining parts of this Act if it had known that such part or parts thereof would be declared unconstitutional.

SECTION 39—TITLE OF ACT

This Act may be cited as the Motor Vehicle Safety-Responsibility Act.

SECTION 40—EFFECTIVE DATE

This Act shall be effective from and after January 1, 1947.

Passed March 13, enrolled March 18, approved March 23, 1946.

CHAPTER 119

(H. B. 439)

AN ACT to amend and re-enact Subsection 35 and Subsection 37, and Sub-section 39, and Sub-section 40, and Sub-section 41, and Sub-section 43, of Section 6.030 of the Kentucky Revised Statutes, 1944 Edition, relating to Representative Districts, and declaring an emergency to exist.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

Section 1. That Sub-section (35) of Section 6.030 of the Kentucky Revised Statutes, 1944 edition, is amended and re-enacted to read as follows:

(35) Thirty-fifth District. That portion of Jefferson County outside the boundaries of the City of Louisville whose boundary is as follows; Beginning on the West shore of the

Ohio River at low water where the Southwest boundary line of the City if extended would intersect; thence Southwestwardly, Southwardly and Southwestwardly, with the West shore of the Ohio River to a point where it intersects the Hardin County line; thence Southeastwardly with the Hardin County line to where it intersects the Bullitt County line; thence Northeastwardly and Southeastwardly with the Bullitt County line to the center line of Bardstown Road; thence Northwestwardly with the center line of Bardstown Road to the present City boundary line of the City of Louisville; thence Southwestwardly, westwardly, Northwestwardly, southwestwardly, to the intersection of Clark's Lane and Pindell Avenue; thence Southeast with the center line of Pindell Avenue to the center line of Howland Avenue, thence Southwest with the center line of Howland Avenue, to the City boundary line at the rear of the property on the East side of Delor Avenue; thence Southeast and Northeast with the City boundary line to the center line of Pindell; thence Southeast with the center line of Pindell to the Southern City boundary line; thence with the City boundary line Southwest to the City boundary line in the rear of property on the West side of Parklawn Drive; thence Northwest with the City boundary line to the center line of Clark's Lane; thence Southwestwardly with the City boundary line; thence Southwardly and Northeastwardly and Southeastwardly, and Southwestwardly, thence Southwardly; thence Westwardly; thence Northwestwardly and Southwestwardly with the City boundary line; to the intersection of East property line of Third Street Road and the City Boundary line as of 1922; thence South with the East property line of Third Street Road to the North property line of Alger Avenue; thence West with the North property line of Alger Avenue to the East property line of Third Street; thence North with the East property line of Third Street to the City boundary line as of 1922, Southwestwardly; to the intersection of the West line of Lone Oak Trail, and the City of Louisville boundary line as established in 1922; thence Southwardly with the West line of Lone Oak Trail, to a point 374.60 feet South of the South line of Inverness Avenue, and being the South line of Lots 1 and 71, County Tax Commissioner Map 61,—G; thence Southwestwardly with the South line of Lots 70 and 71, City Tax Commissioner Map 61—G., approximately 632 feet to the North-

east corner of the Lawnview Subdivision; thence Southeast with the Northeast line of Lawnview Subdivision, 38.9 feet to the West line of Laughlin Avenue; thence South with the West line of Laughlin Ave. to the North line of Kenwood Avenue; thence West with the North line of Kenwood Avenue to the City of Louisville Boundary Line; thence Southwardly; thence Westwardly; thence Southwestwardly; thence Westwardly; thence Northwestwardly; thence Northwardly; thence Eastwardly; thence Northwestwardly; thence Northwardly; thence Northeastwardly; thence Northwardly; thence Northeastwardly with the City Boundary line; to the intersection of McCoy Avenue and Lester Avenue; thence Northwest and Northeast with the City Boundary line, to the City Boundary line along the Northeast line of Schnitter Avenue; thence Southeast with the City Boundary line to the rear of the property on the Northside of Weyler Avenue; thence Northeast with the City Boundary line at the rear of the property on the North side of Weyler Avenue to the City Boundary line along the Northeast side of Dale Avenue; thence Southeast with the City boundary line along the Northeast side of Dale Avenue, to the City Boundary line at Weyler Avenue; thence Southeast with the Old City Boundary line of 1922; thence Northeast; thence Northwest; thence Northeast; thence Northwest; thence Northeast; thence West with the City Boundary line of 1922; to a point 326.86 feet West of Dixie Highway; thence West with the line of the City Boundary as annexed November 15th, 1944, to a point 119.82 feet West of 23rd Street; thence Northwest to the City boundary line of 1922, and being 165.84 feet West of 23rd Street; thence West with the City boundary line; thence Northwest; thence West to the present City Boundary line if extended to the West shore of the Ohio River at low water to the point of beginning.

Section 2. That Sub-section (37) of Section 6.030 of the Kentucky Revised Statutes, 1944 Edition, is amended and reenacted to read as follows:

(37) Thirty-seventh District. That portion of the City of Louisville whose boundary is as follows: Beginning on the east boundary line of the City of Louisville where it intersects the Beargrass Creek in Seneca Park; thence westwardly along the center line of Beargrass Creek to the southeast boundary of Cherokee Park, if extended; thence Southwest

with the southeast boundary of Cherokee Park, if extended, to the center line of Cherokee Road; thence Southwest, northwest, southwest, northwest, southwest, and northwest along the center line of Cherokee Road to the center line of Cherokee Parkway; thence northeast and northwest with the center line of Cherokee Parkway to the center line of Grinstead Drive; thence westwardly with the center of Grinstead Drive to the center line of Slaughter Avenue, if extended, to the center line of Bardstown Road; thence northwest with the center line of Bardstown Road to the center line of Ellwood Avenue; thence southwest with the center line of Ellwood Avenue to the center line of Baxter Avenue; thence northwest with the center line of Baxter Avenue to the center line of Rufer Avenue; thence southwest with the center line of Rufer Avenue to the center line of Barrett Avenue; thence Northwest with the center line of Barrett Avenue to the center line of Kentucky Street; thence southwest with the center line of Kentucky Street to the center line of Beargrass Creek; thence westwardly along the center line of Beargrass Creek and the center line of Kentucky Street, if extended; to the center line of Shelby Street; thence southwardly and Southeast with the center line of Shelby Street to the present city boundary; thence northeast with the present city boundary to the rear of the property of Lansdown and Parklawn Drive, if extended; thence Southeast; thence Northeast to Pindell Avenue; thence Northwest with Pindell Avenue; thence Southwest; thence Northwest with the present City boundary line to Howland Avenue; thence Northeast with Howland Avenue to Pindell Avenue; thence Northwest with Pindell Avenue to the City boundary line of 1922; thence Northeast, Southeast, Northeast, Northwest, East, northwest, Southeast and northwest to the center line of Beargrass Creek in Seneca Park, point of beginning.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

Section 3. That subsection (39) of Section 6.030 of the Kentucky Revised Statutes, 1944 Edition, is amended and re-enacted to read as follows:

(39) Thirty-ninth District. That portion of the City of Louisville whose boundary is as follows: Beginning on the north shore of Ohio River at low water mark where the center line of Floyd Street, if extended would intersect;

thence south with the center line of Floyd Street to the center line of College Street; thence east with the center line of College Street to the center line of Preston Street; thence south with the center line of Preston Street and the center line of Arthur Street to the center line of Eastern Parkway; thence southeast with the center line of Eastern Parkway to the center line of Crittenden Drive; thence south with the center line of Crittenden Drive to the present city boundary line; thence southeast with the present city boundary line and northeast, southeast, southwest, southeast, southwest to the center line of the Louisville and Nashville Railroad right-of-way; thence northwest with the center line of the Louisville and Nashville right-of-way to the center line of Harlan Street, if extended; thence east with the center line of Harlan Street, if extended, to the center line of Floyd Street; thence north with the center line of Floyd Street to the center line of Warnock Street; thence west with the center line of Warnock Street to the center line of Shipp Street; thence northwest with the center line of Shipp Street to the center line of Third Street; thence north with the center line of Third Street; thence north with the center line of Third Street to the center line of Avery Street; thence west with the center line of Avery Street to the center line of Fifth Street, if extended; thence north with the center line of Fifth Street, if extended, and the center line of St. James Court, if extended, and the center line of Garvin Place to the center line of St. Catherine St.; thence east with the center line of St. Catherine Street to the center line of Fifth Street; thence northwardly with the center line of Fifth Street and Fifth Street, if extended, to the north shore of the Ohio River at low water mark; thence eastwardly with the north shore of the Ohio River at low water mark to the center line of Floyd Street, if extended, point of beginning.

Section 4. That Subsection (40) of Section 6.030 of the Kentucky Revised Statutes, 1944 Edition, is amended and re-enacted to read as follows:

(40) Fortieth District. That portion of the City of Louisville whose boundary is as follows:

Beginning on the north shore of the Ohio River at low water mark where the center line of Fifth Street, if extended, would intersect; thence South with the center line

of Fifth Street, if extended, and the center line of Fifth Street to the center line of St. Catherine Street; thence west with the center line of St. Catherine Street to the center line of Garvin Place; thence south with the center line of Garvin Place, if extended, and the center line of St. James Court, the center of St. James Court, the center line of Fifth Street, if extended, to the center line of Avery Street; thence east with the center line of Avery Street to the center line of Third Street; thence south with the center line of Third Street to the center line of Shipp Street; thence Southeast with the center line of Shipp Street to the center line of Warnock Street; thence east with the center line of Warnock Street to the center line of Floyd Street; thence south with the center line of Floyd Street to the center line of Harlan Street, if extended; thence west with the center line of Harlan Street, if extended, to the center line of the Louisville and Nashville Railroad right-of-way; thence southeast with the Louisville and Nashville right-of-way to the present city boundary line; thence southwest, northwest and southwest along the City boundary line to the center line of Third Street Road; thence South with the Center line of Third Street Road to the North property line of Alger Avenue; thence West with the North property line fo Alger Avenue to the East property line of Third Street; thence North with the east property line of Third Street to the City boundary line as of 1922; thence North with the center line of Third Street to the center line of Kenwood Way; thence northwest with the center line of Kenwood Way to the center line of Southern Parkway; thence north with the center line of Southern Parkway to the center line of Ashland Avenue; thence west with the center line of Ashland Avenue to the center line of Sixth Street; thence north with the center line of Sixth Street to the center line of Park Avenue; thence West with the center line of Park Avenue to the center line of Eighth Street; thence north with the center line of Eighth Street to the center line of Florence Street; thence East with the center line of Florence Street to the center line of Eighth Street; thence north with the center line of Eighth Street to the center line of Longfield Avenue; thence east with the center line of Longfield Avenue; thence east with the center line of Longfield Avenue to the center line of Seventh Street, if extended; thence north with the center

line of Seventh Street and Seventh Street, if extended to the center line of the Southern Railroad; thence northwest with the center line of the Southern Railroad to the center line of Tenth Street; thence north with the center line of Tenth Street and Tenth Street if extended to the north shore of the Ohio River at low water; thence eastwardly with the north shore of the Ohio River at low water to the center line of South Street, if extended, point of beginning.

Section 5. That subsection (41) of Section 6.030 of the Kentucky Revised Statutes, 1944 Edition is amended and re-enacted to read as follows:

(41) Forty-first District. That portion of the City of Louisville whose boundary is as follows:

Beginning at a point where the center line of Tenth street, if extended would intersect the P.C.C. & St. L. Bridge; thence south with the center line of Tenth Street and Tenth Street, if extended to the center line of the Southern Railroad right-of-way; thence Southeast with the center line of the Southern Railroad right-of-way to the center line of Seventh Street if extended; thence south with the center line of Seventh Street if extended to the center line of Longfield Avenue; thence west with the center line of Longfield Avenue to the center line of Eighth Street; thence south with the center line of Eighth Street to the center line of Florence street; thence west with the center line of Florence Street to the center line of Eighth Street; thence south with the center line of Eighth Street to the center line of Park Avenue; thence east with the center line of Park Avenue to the center line of Sixth Street; thence south with the center line of Sixth Street to the center line of Ashland Avenue; thence east with the center line of Ashland Avenue to the center line of Southern Parkway; thence south with the center line of Southern Parkway to the center line of Kenwood Way; thence southeast with the center line of Kenwood Way to the center line of Third Street thence South with the center line of Third Street to the present city boundary; thence southwest with the present city boundary; to the intersection of the West line of Lone Oak Trail; and the City of Louisville boundary line as established in 1922; thence Southward-

ly with the West line of Lone Oak Trail to a point 374.60 feet South of the South line of Inverness Avenue, and being the South line of Lots 1 and 71, County Tax Commissioner Map 61—G., thence Southwestwardly with the South line of Lots 70 and 71, City Tax Commissioner Map 61—G., approximately 632 feet to the Northeast corner of the Lawnview Subdivision; thence Southeast with the Northeast line of Longview Subdivision, 38.9 feet to the West line of Laughlin Avenue; thence South with the West line of Laughlin Ave., to the North line of Kenwood Avenue; thence South with the West line of Laughlin Ave. to the North line of Kenwood Avenue; thence West with the North line of Kenwood Avenue to the city of Louisville Boundary Line; thence South; thence Southwest, West, North, East, Northwest, Northeast, North, Northeast, with the City boundary line; to the intersection of McCoy Avenue and Lester Avenue; thence Northwest and Northeast with the City Boundary line to the City Boundary line along the Northeast line of Schneider Avenue; thence Southeast with the City Boundary line to the rear of the property on the north side of Weyler Avenue; thence Northeast with the City boundary line at the rear of the property on the North side of Weyler Avenue to the City Boundary line along the Northeast side of Dale Avenue; thence Southeast with the City boundary line along the Northeast side of Dale Avenue, to the City Boundary line of Weyler Avenue; thence Southeast with the Old City boundary line of 1922; thence Northeast; thence Northwest; thence Northeast; thence Northwest; thence Northeast; thence West to the City boundary line of 1922 to the center line of Sixteenth Street; thence North with the center line of Sixteenth Street to the center line of Kentucky Street; thence east with the center line of Kentucky Street to the center line of Fourteenth Street; thence north with the center line of Fourteenth Street and Fourteenth Street, if extended to the center line of the P.C.C. and St. L. Bridge; thence north with the P.C.C. and St. L. Bridge to a point where the center line of Tenth Street if extended would intersect, point of beginning.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

Section 6. That subsection (43) of Section 6.030 of

the Kentucky Revised Statutes, 1944 Edition, is amended and re-enacted to read as follows:

(43) Forty-third District. That portion of the City of Louisville whose boundary is as follows:

Beginning on the North shore of the Ohio River at low water mark where the center line of twenty-second street (old Twenty-first Street) if extended would intersect; thence Southwestwardly with the center line of said Twenty-second Street, if extended, and the center line of said Twenty-second Street (old Twenty-first Street from Dumesnil Street) to the boundary line of the City of Louisville of 1922; thence south with the center line of Twenty-second Street to the new city boundary line of 1944, thence West with the City boundary line of 1944 and City boundary line of 1922 to Thirty-fifth Street; thence northward with the center line of Thirty-fifth Street to the center line of Southern Avenue; thence Eastwardly to the center line of Southern Avenue to the center line of K. & I. Railroad right-of-way, if extended, thence Northwardly with the center line of the K. & I. Railroad right-of-way and the center line of Thirty-third Street, if extended, would intersect the north shore of the Ohio River at low water; thence notheastwardly with the north shore of the Ohio River at low water to the center line of Twenty-second Street (Old Twenty-first Street) if extended, at point of beginning.

Section 7. Whereas Jefferson County is installing Voting Machines in said County which will necessitate the consolidation of existing voting precincts therein in order to average 700 votes to the precinct; and,

Whereas, the purpose of this Act is to adjust and correct the description of boundary lines in the following Legislative Districts, viz: 35th, 37th, 39th, 40th, 41st, and 43rd, and

Whereas, the City of Louisville has at various times annexed certain areas to said corporate limits and to render the consolidation of the voting precincts more feasible, convenient and just, and,

Whereas said consolidation of said voting precincts must be accomplished immediately in order to complete the installation of voting machines for use at the Primary Election in August of 1946,

Now, Therefore, an emergency is declared to exist and this Act shall take effect from and after its passage and approval by the Governor.

Passed March 15, enrolled March 18, approved March 22, 1946.

CHAPTER 120

(H. B. 440)

AN ACT relating to mines and mining.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

§ 1. Section 351.010 of the Kentucky Revised Statutes is amended to read as follows:

(1) As used in this chapter, unless the context requires otherwise:

(a) "Chief" means Chief of the Department of Mines and Minerals.

(b) "Commercial mine" means any coal mine from which coal is mined for sale or exchange.

(c) "Department" means the Department of Mines and Minerals.

(d) "Drift" means an opening through the strata, with opening grades such as to permit coal to be hauled by mules or mechanical traction power, and capable of being used for the purpose of ventilation, drainage, ingress, egress and other purposes in connection with the mining of coal.

(e) "Gaseous mine" means a mine in which the percentage of explosive gas exceeds one-half of one percent at the return of any one split of dusty mine, or three-fourths of one percent at the return of any one split if a non-dusty mine.

"Nongaseous mine" means any mine not classified as a gaseous mine.

(f) "Mine" means a group or system of shafts, slopes, drifts or inclined planes connected by one general system of mine railroads over which coal may be delivered to one or more points outside the mine, and connected with excavations that penetrate coal strata and are ventilated by one general air current or divisions thereof.